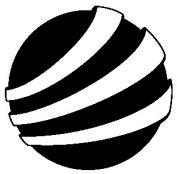
In the Matter Of:

ROSARIO vs ABDELHALIM

CGC-21-594102

FRANCISCUS D. ROSARIO

August 18, 2022



ESQUIRE
DEPOSITION SOLUTIONS

800.211.DEPO (3376)
EsquireSolutions.com

1 SUPERIOR COURT OF THE STATE OF CALIFORNIA

2 FOR THE COUNTY OF SAN FRANCISCO

3 UNLIMITED CIVIL JURISDICTION

4

5 FRANCISCUS DYLAN ROSARIO,) CASE NO.
Plaintiff,) CGC-21-594102
6)
VS.)
7)
SUBHI ABDELHALIM,)
8 individually, and dba)
SONOMA LIQUOR,)
9)
Defendants.)
10 _____)

11

12 DEPOSITION OF FRANCISCUS DYLAN ROSARIO

13 APPEARING REMOTELY FROM

14 SAN FRANCISCO, CALIFORNIA

15 THURSDAY, AUGUST 18, 2022

16 9:59 A.M.

17

18

19

20

21

22

23

24

Reported By: Barbara Sunseri
25 CSR 6989

1 APPEARANCES OF COUNSEL

2 For the Plaintiff:

3 (REMOTELY VIA VIDEO CONFERENCE)
DOLAN LAW FIRM, PC
4 By: KIMBERLY E. LEVY
1438 Market Street
5 San Francisco, CA 94012-5004
415.421.2830
6 kimberly.levy@dolanlawfirm.com

7 For the Defendant Subhi Abdelhalim:

8 (REMOTELY VIA VIDEO CONFERENCE)
CARBONE, SMITH & KOYAMA
9 By: MICHAEL R. CHAMBERS
555 12th Street, Suite 1250
10 Oakland, CA 94607-4095
510.267.7276
11 Michael.Chambers@csaa.com

12
Also Present (REMOTELY VIA VIDEOCONFERENCE):
13
Victoria Brooks
14

15

16

17

18

19

20

21

22

23

24

25

1 INDEX OF EXAMINATION

2

WITNESS: FRANCISCUS DYLAN ROSARIO

3

EXAMINATION PAGE

4

By Mr. Chambers 4

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25

1 SAN FRANCISCO, CALIFORNIA;
2 THURSDAY, AUGUST 18, 2022, 9:59 A.M.
3
4 FRANCISCUS DYLAN ROSARIO,
5 having been first remotely duly sworn by the
6 reporter testified as follows:
7
8 EXAMINATION
9 BY MR. CHAMBERS:
10 Q Would you state your full name for the record,
11 please.
12 A Franciscus Dylan Rosario.
13 MR. CHAMBERS: Are you expecting someone else,
14 Kim?
15 MS. LEVY: I wasn't. This is Mr. Rosario's
16 wife. I mean, if it's okay with you if she stays --
17 THE WITNESS: There's some things that --
18 because of my mental condition, there's some things that
19 she could provide.
20 MR. CHAMBERS: She can't testify.
21 THE WITNESS: I understand.
22 MR. CHAMBERS: She can't assist you during the
23 deposition.
24 THE WITNESS: That's fine.
25 MS. BROOKS: I'm just listening in. I'm

1 driving in my car right now.
2 BY MR. CHAMBERS:
3 Q Let's just start from the beginning.
4 Would you please state your name for the
5 record.
6 A Franciscus Dylan Rosario.
7 Q My name is Mike Chambers and I'll be taking
8 your deposition this morning. Have you ever had your
9 deposition taken before?
10 A Once as a child. I haven't as an adult.
11 Q Let me just go through some rules with you for
12 a deposition. The first one is that you've been placed
13 under oath and you'll be testifying under the penalty of
14 perjury. Do you understand what that means?
15 A Oh, yeah.
16 Q Your testimony this morning is going to be
17 taken down by the court reporter. She's going to put it
18 into a written transcript. You'll be given an
19 opportunity to review that transcript and make any
20 changes or corrections that you feel are necessary. I
21 want you to know that any changes or corrections that
22 you make to your transcript I can comment on in an
23 arbitration or trial. Do you understand that?
24 A Yes.
25 Q When you're answering questions today I don't

1 want you to guess or to speculate. If you don't know
2 the answer to a question or if you don't remember,
3 please indicate that. I may ask you to estimate things
4 like distance, time, and speed. If you can give me an
5 estimate, great, but if you're guessing, I don't want
6 you to guess. Do you understand that?
7 A Oh, yeah.
8 Q The other thing is that when you're responding
9 to questions today, you need to speak your answers.
10 Particularly if a question calls for a "Yes" or "No"
11 response, you need to say that word, "Yes" or "No",
12 rather than nodding or shaking your head. Do you
13 understand that?
14 A Yes, I understand.
15 Q The other thing is, particularly in this Zoom
16 format, we both can't be speaking at the same time.
17 Otherwise, the court reporter can't hear either one of
18 us and we'll have to redo the question. So when I'm
19 asking a question today, just give me a couple of
20 heartbeats after I finish speaking before you come in.
21 And I'll probably ask something really obvious as we go
22 along. Don't anticipate the question and jump in with
23 an answer. Just wait for me to finish speaking before
24 you come in with your answer. Do you understand that?
25 A Yes, I do.

1 Q The other thing is that sometimes what happens
2 in this Zoom format is I'll be speaking and for whatever
3 reason my audio goes out and you don't hear the entire
4 question. Usually the court reporter will alert me
5 right away that that's happened, but if it's just on
6 your end, let me know right away that you didn't hear
7 the entire question and I'll repeat the entire question
8 before you respond. Do you understand that?
9 A Yes, absolutely.
10 Q And if I ask you something that you don't
11 understand, just tell me and I'll keep rephrasing the
12 question until you do understand. Do you understand
13 that?
14 A Yes.
15 Q And this shouldn't go too long, but if you need
16 to take a break at any time, just let me know and we can
17 go off the record, okay?
18 A Okay.
19 Q I just want to go through a little bit of your
20 background information, so let me pull that up. Your
21 date of birth, is it June 6th, 1976?
22 A That's right.
23 Q And your current address, is it still 835 Terry
24 A Francois Boulevard in San Francisco?
25 A Yes.

1 Q And does anyone live with you at that address?
2 A No. My children are staying with me, they just
3 arrived in California, but no one lives with me other
4 than myself. It's a work/loft type situation, so I
5 turned half of it into a residence, and the front of my
6 facility is where my employees and team members work.
7 Q And you currently work for a company called
8 Rowzzy A.i?
9 A Rowzzy, yes.
10 Q For the court reporter, that's R-o-w-z-z-y, and
11 then capital "A," period, and then little "I," period?
12 A It's actually a Delaware Class C Corporation.
13 It's Rowzzy Co., R-o-w-z-z-y, C-o.
14 Q Okay. I'm just going off your discovery
15 responses.
16 A Yeah.
17 Q You're the chief innovation officer and
18 founder?
19 A I'm the founder, yes, and chief innovation
20 officer. I'm the president of the board.
21 Q It indicates you do innovation in cybernetic
22 interfaces and computer cognition. And I have no idea
23 what that is. In layman's terms, can you tell me what
24 that is?
25 A Cybernetics is the study of human cognitive

1 neural models in conjunction with computer systems. So
2 things like Siri and Alexa and, you know, vision
3 systems that control driving cars, that's my job.
4 Q So is it similar to -- or is it like developing
5 AI?
6 A That's correct, sir. It's similar to
7 developing AI but it has a heavier human interaction
8 component than how you'd think of machine learning which
9 just crunches numbers.
10 Q And then as far as education, first off, you
11 went to Stanford and Berkeley; is that correct?
12 A Studied at both, yes.
13 Q Let me ask this. As far as college degrees,
14 what degrees do you have?
15 A I went through my undergraduate, and during my
16 undergraduate I was recruited directly out of school to
17 IBM, so I didn't complete those. I went to work
18 directly at the IBM Research Laboratory in Alameda,
19 California here -- or Almaden, I'm sorry. And so like
20 Bill Gates and everyone else, they all dropped out
21 because there was a point that it was futile. I was
22 already making more than the Ph.D.s earned, so --
23 Q Are you married?
24 A Yes.
25 Q And you mentioned children. How many children

1 do you have?
2 A Four.
3 Q And boys or girls?
4 A Two boys, two girls. The oldest is here,
5 actually. He's 28. And the youngest is --
6 THE WITNESS: He's 21, Victoria? Yeah, I think
7 21.
8 BY MR. CHAMBERS:
9 Q Let's go ahead and talk about the accident that
10 you were involved in. Do you remember the date of the
11 accident?
12 A The collision, I don't call it an accident, was
13 I think February 4th, approximately.
14 Q Do you recall what year?
15 A Last year, 2021.
16 Q And I believe -- my information is you were
17 riding a scooter at the time.
18 A I had a scooter with me. I don't recall
19 whether I was riding or not. I just remember picking
20 myself up off the sidewalk. Or not even picking myself
21 up but I just remember the moments before it. I can't
22 honestly say whether I was walking the scooter, rolling
23 on it, or anything like that. I just remember, you
24 know, a total blackness and then I'm laying on the
25 ground.

1 Q Was it one of those commercial scooters like
2 Lime or one of those?
3 A Yeah, I believe so, uh-huh.
4 Q Do you recall where you got the scooter at,
5 where you started with the scooter?
6 A On the street in front of my laboratory.
7 Q So that's the address we talked about earlier?
8 A Yes.
9 Q And where were you either walking or riding to
10 at the time of the accident?
11 A I was on my way to get groceries at a Safeway,
12 I believe, over on Market Street.
13 Q And what street were you traveling on at the
14 time of the accident?
15 A I believe it was Fifth.
16 Q So were you on Fifth Street traveling towards
17 Market Street, then, at the time of the accident?
18 A Like I said, what direction, I don't remember
19 direction. I just remember being struck on the sidewalk
20 or coming to on the sidewalk. So I don't know which
21 direction I was going.
22 Q Were you traveling in the street or on the
23 sidewalk at the time of the accident?
24 A I just remember waking up, or like my cognition
25 came to and I was laying on the sidewalk. So I can't

1 say whether I was on the sidewalk or in a bike lane or
2 anything.
3 Q Well, what's your last memory before the
4 impact?
5 A The last memory, I was going past the baseball
6 stadium, Oracle Field. So there's a big blank spot,
7 particularly about which routes, you know. I had
8 estimated, because I had looked at my little mobile
9 phone app but it was inaccurate anyways, the record
10 didn't even come through for some reason, and I had
11 presumed -- based on where I was at, I made an
12 assumption and I wrote down where I was in the document
13 that I filed to you guys. So I was trying to piece
14 together myself where I was located and which direction
15 I was going.
16 Q But your last memory before the impact was
17 passing the ballpark?
18 A Yeah, and it's quite a ways away from the
19 ballpark. It's almost a mile and a half away from the
20 ballpark, so -- of course, I was struck by a 7,000-pound
21 truck, so --
22 Q And your memory after that was --
23 A It was spotty. I remember laying on the ground
24 and I took a photo. I couldn't breathe. And it was
25 sporadic. I mean, I don't know how -- it was like brief

1 images of streets and vehicles, and then I'm on the
2 ground and there's a guy hovering over me saying, "Hey,
3 you're okay, you're okay."
4 I'm an audio learner, Mike, so when I learn, I
5 listen to things. So it's more -- some people are
6 visual. I'm very audio, so I remember words and things
7 that were said to me quite a bit better than what I
8 recall as far as vision. I was struck really hard.
9 Q When you woke up were you in the street or on
10 the sidewalk? Do you recall where you were --
11 A Yeah. I was face-down on the sidewalk.
12 There's a photo that was taken almost within minutes
13 after I came to, and like I said, I heard somebody
14 saying, "Hey, you're okay, you're okay," and I couldn't
15 breathe, I couldn't say anything. And then I guess the
16 person that was saying it was the defendant, and he
17 started walking away from me to get into his van, and
18 somehow or another I was able to breathe in enough for
19 my lungs to expand, because my rib cage had been
20 crushed, for me to tell him that he was on camera and
21 that if he left, the police would -- he'd be in really
22 big trouble.
23 I figured he was just going to leave me there.
24 I can remember the emotions and the sounds that were
25 going on around me much clearer than I can remember, you

1 know, the vivid -- or excuse me, the sequence of time of
2 events.
3 Q Do you have any memory at all of the impact
4 with the vehicle?
5 A Yeah. It hurt. Matter of fact, I don't think
6 that memory has left me a single day since that time.
7 Like I said, I'm an audio person. If you say, "Dylan,
8 do you remember visually what happened?" I know that I
9 felt something like the force of literally maybe being
10 thrown out of a ten-story building and hitting the
11 ground. You know, it was like that. It was very
12 physical and tactile across me, and my hearing and I
13 suppose my adrenaline started kicking in after that. I
14 thought somebody had shot me. Or I didn't know what was
15 going on. I couldn't understand what was happening
16 until I came to and the defendant was hovering over me
17 and trying to tell me that I was okay. And I couldn't
18 breathe. I couldn't say otherwise. But I remember my
19 adrenaline starting to really kick in when he started to
20 drive away and just leave me there.
21 Q You mentioned before you were having trouble
22 breathing at the scene. What pain were you having at
23 the scene?
24 A It felt like -- obviously only half of my chest
25 was operational. My other lung had been collapsed, and

1 the ribs were fractured to a point that they were -- I
2 couldn't expand my right lung, and so it was just
3 extremely painful. Probably one of the most painful
4 things I had ever experienced when I breathed in. To me
5 it felt like a miracle that -- I could see my -- I tried
6 to pull my shirt up and I could just feel there was like
7 a concave indent right here on the side of my body
8 (pointing).
9 Q Was that on the right side?
10 A Yeah, on the right side, correct.
11 Q Anything other pain or symptoms that you recall
12 experiencing at the scene?
13 A It was the whole -- everything from my
14 shoulder, my neck, all the way to my hip. I got hit by
15 a truck, man, so -- I really couldn't -- it was so
16 encompassing. And then your adrenaline kicks in, you
17 know, and your body goes into that, you know, that fight
18 or flight thing. My grandfather was bayoneted by the
19 Japanese during World War II in the Philippines and he
20 survived that to escape the Bataan Death March, and my
21 father was shot in Vietnam. So I guess my adrenaline,
22 my endocrine system started to kick in and started to
23 cut the pain centers off.
24 But I couldn't move. It was like -- it felt
25 like a chunk of my back was missing. I recall that

1 feeling of literally like there was something, you know,
2 like really, really wrong inside.
3 Q Did an ambulance come to the scene?
4 A Inevitably, yes, after about --
5 Q And --
6 A Go ahead. I'll only answer your questions.
7 Q That's okay. Did you get examined by the
8 ambulance personnel?
9 A I did, I did.
10 Q And did they take you from the scene in the
11 ambulance?
12 A No. I went into the ambulance, and then one of
13 my employees from my laboratory, I left with one of my
14 employees who came to the scene and picked me up.
15 Q Did you call the employee from the scene?
16 A I called my sister and she called one of my
17 employees.
18 Q And the police were at the scene?
19 A No, they were not at the scene when I was
20 struck, not at all.
21 Q No. After the fact did the police come to the
22 scene?
23 A The police arrived after 911 was called by the
24 defendant after I had been pleading on the ground after
25 about 15 minutes to call. He finally did.

1 Q And did you speak with the police at the scene?
2 A I was not -- I'll say this. I remember that I
3 was being yelled at by people in uniforms, but my brain
4 was buzzing so much, I didn't understand what was going
5 on, and my body was going into this fight or flight
6 mode. So I do remember that they were yelling at me and
7 they kept on asking me different questions or making
8 statements, and -- yeah. So if you want to call that
9 speaking to them -- to be correct, it was not a formal,
10 you know, like a police report. I didn't even remember
11 most of the things that they asked. I do remember
12 agreeing to what they were telling me, so yeah, I guess
13 that's speaking. I was responding to their statements
14 and their declarations.
15 Q Did you --
16 A I was not in a physical or mental place to be
17 able to even really understand what was going on around
18 me. So actually I'm not going to say that I was
19 speaking to them, not in the classic sense, if you were
20 to take the literal word. I wasn't in a direct,
21 cohesive dialogue back and forth with police officers,
22 no. Does that answer your question?
23 Q Sure. Did you ever review a copy of the police
24 report?
25 A Not until Ms. Levy provided that to me, until

1 my attorneys provided that to me.
2 Q When you saw that police report, did you ever
3 contact the police and ask for changes to the police
4 report?
5 A No. I didn't know that was possible, and like
6 I said, I can't say whether their hearsay of what I said
7 or the answers that they asked me under severe pain and,
8 you know, psychological confusion were accurate or not.
9 You know what I'm saying? So I know that they weren't
10 present or witness of the collision, and I remember them
11 yelling at me and I was just -- my adrenaline was going.
12 I was scared for my life. Those chemicals that go
13 through your body when you get a near-death mortal wound
14 were fogging everything. So like I said, I don't
15 know -- and I can't speak to the veracity of whether I
16 said those things. I imagine they had body cams, so I'm
17 sure that their record probably backs whatever they said
18 that they recorded.
19 Q Right. So your employee took you from the
20 scene?
21 A Correct, yes.
22 Q And where did your employee take you?
23 A He asked me if I wanted to go to the hospital,
24 I recall, and he was driving past the hospital, and I
25 got really scared because of all the people that were

1 dying from Covid in the hospital, and I said for him to
2 bring me back to my laboratory. I can recall portions
3 of that conversation. I believe after that I had called
4 my wife.
5 Q So when did you first seek medical care?
6 A Well, when did I first seek it?
7 Q Correct.
8 A That same day.
9 Q Where did you go?
10 A I called. I didn't go anywhere. I called and
11 I believe that my wife assisted me with that, and so we
12 had called my medical provider and set up an appointment
13 to get looked at.
14 Q And which medical provider was that?
15 A One Medical.
16 Q And when did you have your appointment with One
17 Medical?
18 A It was in the morning.
19 Q The next day?
20 A That next morning, yeah. I was in severe,
21 severe -- I mean, the hours after that collision, the
22 pain level kept on going up and up and up and up, and it
23 was disturbing because there was no bruises. So I just
24 didn't know whether it was just -- I couldn't understand
25 what was going on, so I didn't know "Okay, am I being a

1 big baby and it's just a cracked rib or is there
2 something really wrong?" So I didn't want to take the
3 chance, and that was the reasoning I gave my wife, I
4 didn't want to take the chance of going into a hospital
5 and contracting Covid-19, so I wanted to see my own
6 private practitioner first and make sure that I wasn't
7 overreacting and I had just a cracked rib or something.
8 Q So when you went to One Medical the next day,
9 what pain were you having at that point?
10 A It was pervasive, complete, all the way through
11 my torso down to my waist and up to my neck and head and
12 my shoulder area. I was hobbling, you know.
13 Q And which shoulder was in pain?
14 A It was my right side, sir. I mean, I got hit
15 by a truck. It's a truck and I'm a person. It was
16 everything. As I said, I recall the feelings and the
17 pain very clearly.
18 Q Are you right- or left-handed?
19 A I'm right-handed.
20 Q So when you were at One Medical, did you get
21 examined by a doctor?
22 A She listened to my lungs, like I believe they
23 did in the ambulance at the scene, and she said that she
24 couldn't sense anything, and I remember having an
25 argument with her. She told me to go to the ER and I

1 told her I didn't want to go to the hospital with all
2 the people with Covid, and I asked her to get me, what
3 do you call it, an x-ray. They have to give you a
4 referral to get the x-ray, and we actually -- I mean, I
5 was in so much pain, we actually almost got in a fight
6 about it, and I'm like "Hey, look, I just want an
7 x-ray," right, and she's like "You need to go to the
8 ER," and I'm like "I just want an x-ray to make sure
9 I'm" -- for them to understand, whether it was the ER or
10 her or somebody.
11 The One Medical professional that observed me
12 told me that they can't even do anything about a broken
13 rib anyways. Even if you did break a rib, they're not
14 going to put you in a cast; they're just going to give
15 you Advil and send you home. So I was trying to
16 mitigate being exposed to a deadly pathogen that was all
17 over the hospitals at the time. So I was very reluctant
18 to go and I just said, "Hey, I just want to get an
19 x-ray." That's what happened.
20 Q So she gave you a referral for an x-ray?
21 A Yes, and I went to UCSF just a few blocks away
22 from my laboratory.
23 Q So you had the x-ray at UCSF?
24 A Yeah.
25 Q And did someone discuss with you the results of

1 the x-rays?
2 A No. The x-ray guy told me he can't tell me
3 what was going on. He was acting really weird and he
4 said, "I can't tell you what's in there but I'll let you
5 look," and I looked at it and I -- I don't know how to
6 read an x-ray, but I could kind of see the ribs were not
7 looking good, and I said, "That doesn't look good," and
8 he goes, "I can't say anything." And he goes, "Let me
9 walk you to the lobby." And I'm like, "Okay." I was
10 getting weirded out, right? I mean, why does this guy
11 want to walk me out? I'm hobbling and the pain was
12 going up and up and up, and so that's what happened.
13 That's what he told me.
14 The doctor who gave me the referral, before I
15 got three blocks, had called me two times. Because I
16 had turned my ringer off, it had gone to voicemail, and
17 finally I looked at it and it was buzzing, so I had
18 gotten back and just up the stairs, my wife had helped
19 me up the stairs, and then I picked up the phone and
20 they told me that it was an emergency, I needed to go to
21 the ER immediately, that my right rib cage had been
22 fully -- I had a full pneumothorax and multiple
23 perforations in the lung and the lung was going to
24 continue to collapse on my right. They said it was
25 severe trauma to my right rib cage.

1 Q Where did you go to at that point, then?
2 A She gave me a referral to -- she said, "Just go
3 to" -- she said, "Go to the ER," that's what she said,
4 and actually that's kind of the crazy part of the story.
5 Victoria, my wife, and I tried to go to three different
6 ERs, and one we went to first was the Parnassus, I
7 believe, and that one had a line of cars going all the
8 way around the block to get into the ER. There was a
9 massive amount of people going in. It looked like the
10 place was being inundated with Covid-19 patients.
11 So I remember helping one of my team members'
12 mother who had like a neural stroke and she was at this
13 really nice hospital at Sutter, and I told my wife, I
14 said, "If I'm going to have to go to the ER, I want to
15 go to like the fancy ER with fewer people." So we went
16 to Parnassus. The line was so long we couldn't get in.
17 So my wife drove me to the Sutter over on Van Ness, and
18 I went in there, and that's where -- I can't remember,
19 Dr. -- a Japanese name looked at me and -- yeah.
20 Q So you had your ER care, then, at the Sutter
21 facility on Van Ness?
22 A No. He brought me in and he was very --
23 remember, I was in a lot of pain so certain words were
24 just slipping past me. We told him that I was hit by a
25 truck, and he was like "What are you talking about?" and

1 he lifted up my shirt and he's like "There's no
2 bruises." And so he put me up on a table and all of his
3 med students came in and they started ripping my shirt
4 off and sticking EEG signals on me, and he goes, "Look,
5 Mr. Rosario, we're not a trauma center," and I'm like
6 "What?" and he goes, "You need to go to a different" --
7 and I'm like "Isn't this an ER?" and he goes "We're not
8 a trauma ER." I'm like "I didn't know that there's
9 different types of ER. I didn't know you had to go to
10 the trauma ER in order to" -- I'm like "I just know I
11 got hit by a truck yesterday" I told him. He goes,
12 "What? You have no marks." I was like "It's just
13 really painful. I'm having a hard time breathing and
14 it's just painful all over here," and he goes, "Okay."
15 So he put me up on this table and put
16 electrodes all over me, and he pulls up this portable
17 x-ray machine and he did like three double takes. Like
18 he'd look at the x-ray machine, he'd look at me, looked
19 at the x-ray machine, looked back up at me and he goes,
20 "I can't believe it." And I go, "What?" He goes, "Half
21 the ribs in your right rib cage are completely fractured
22 and sticking into your lung."
23 So he goes, "I mean, you wouldn't know by
24 looking at you. Obviously you're in pain, but there's
25 no bruising." He goes, "I'm calling an ambulance," and

1 I'm like "Aren't I in" -- I kept on freaking out. Like
2 "Aren't I in an ER?" He goes, "We don't do trauma here.
3 I'm sending you to Zuckerberg." By that time the pain
4 was just -- anyways, by that time I was -- you know, it
5 was all that I could do to keep the pain at bay. I was
6 losing it mentally.
7 Q So did they take you by ambulance, then, to San
8 Francisco General?
9 A Yes. Yeah. They loaded me up from one ER.
10 Now I finally made it to the third ER, and I remember
11 kind of thinking --
12 MS. LEVY: There's no question pending, Dylan.
13 Please wait for a question.
14 THE WITNESS: Oh. I thought he asked me if
15 they took me to that. Okay.
16 BY MR. CHAMBERS:
17 Q When you got to San Francisco General, were you
18 admitted into the hospital at that point?
19 A They took me straight in the special entrance
20 for trauma, so I don't know "admitted." I know I got
21 wheeled into this room that said "Revival." It was
22 freaking me out.
23 Q So you were examined at San Francisco General?
24 A Yeah, yeah. There was like an army of kids, I
25 remember. They were all interns doing their --

1 Q Did they do any additional testing of you at
2 San Francisco General?
3 A Oh, yeah. They did a CAT scan, they did a
4 number of things. I was loathsome because by that time
5 I was just -- the pain was so overbearing but I -- you
6 know, I had to -- I knew that there was something
7 serious the night before. So I was expecting that I was
8 going to have to go in the -- until the doctor said,
9 "Hey, you need to go because it's an emergency," I was
10 reluctant. My wife and everybody will tell you, even
11 the doctor, I did not want to go into a place with Covid
12 and die.
13 Q Did you have to stay a few days at the
14 hospital?
15 A Yeah, yeah.
16 Q When you were discharged from the hospital,
17 from San Francisco General, what pain or symptoms were
18 you having at that point?
19 A It was -- I mean, immediate, like I'm going to
20 suffocate. Pressure was alleviating, but I was still
21 having severe spinal and skeletal as well as nerve
22 system damage. I could feel it all the way up to -- up
23 to the base of my skull and cranium, and throughout my
24 arm it was -- I could barely rotate my waist or my arms.
25 I couldn't lift my arm. Still no bruising. It was

1 quite -- it was uncanny I'd say.
2 Q At some point after the accident did you ever
3 develop any bruises, cuts, abrasions, anything like that
4 at all?
5 A The right side -- remember, they had to
6 puncture my right rib cage to move the ribs around and
7 reinflate my lung and draw the air out of my thorax, so
8 there was a small bruising that had formed after they
9 had punctured me, but if I recall, not -- those days
10 after were purely just me trying to stay alive, you
11 know. The pain was excruciating to a point where --
12 yeah.
13 Q I'm assuming when you were discharged from the
14 hospital that they gave you a prescription for
15 medication.
16 A Advil.
17 Q Over-the-counter or prescription?
18 A They offered me medication and narcotics, but
19 the type they offered me I'm extremely, extremely
20 allergic to, so I did not take that. They gave me a
21 prescription for gabapentin and then Advil and for
22 Lidocaine patches. I believe there might have been
23 more, but like I said, I was doing whatever I could to
24 keep the pain at bay.
25 Q Did you utilize those -- what they provided to

1 you or did you just go with the Advil?
2 A No. I utilized everything that the doctor gave
3 me, but the gabapentin, it was very -- the side effects
4 were horrible, let's just say that.
5 Q The patches, did you use those -- were those
6 being used on your chest?
7 A Yeah. Back, chest, the entire area. My wife
8 did most of the application for that.
9 Q After you came home from your treatment at San
10 Francisco General, where did you go next for medical
11 care?
12 A I had called on friends of mine who were
13 physicians to come over and look me over. My business
14 partner's father is a surgeon at Stanford. He was a
15 pulmonary -- like a professor in pulmonary medicine. So
16 I opted to do in-home, you know, private medical visits
17 until -- and yeah. So I sought my own healthcare at the
18 time.
19 I had lost my healthcare a year prior during
20 the pandemic and I didn't have personal healthcare for
21 myself. Of course, no one walks around thinking they're
22 going to get hit by a truck either. So I had to do what
23 I had to do for my personal medical. The doctors when I
24 was released said that all they could do is give me
25 prescriptions, and so I continued to see -- or

1 communicate with One Medical for the stuff that they
2 gave me, but like I said, you know, they just gave me
3 the gabapentin which is, you know, Neurontin, and
4 everything else was just Lidocaine which was topical and
5 that's not going to do anything about a bone that's
6 inside your body or your spine. It can't soak through
7 your skin. It's topical. Lidocaine patches can only
8 penetrate "x" amount through the epidermis, so --
9 Q So if I'm understanding you correctly, did you
10 have a primary care doctor at the time of this accident?
11 A I had One Medical. That was my provider. I
12 was self-insuring. As you understand, Mike, I own a
13 start-up, you know. I don't have a lot of money for
14 extra health plans and things like that.
15 Q There's some providers listed in your discovery
16 responses. Let me just ask you about them and see what
17 you recall about your care with them.
18 It looks like at some point you went to Kaiser
19 Mission Bay for some care. Do you recall what you --
20 A Months after -- you want it chronological?
21 Q If you can do that, that's great.
22 A A non sequitur like that, that was long after I
23 was joined onto my wife's health insurance. So there
24 were months prior to that where I had to provide and get
25 my own care.

1 Q If you can do it chronologically, that's fine.
2 So you had some physician check you out. When was your
3 next formal care for your injuries?
4 A I don't know, and I'm going to tell you there's
5 a reason why, Mike. The gabapentin was causing
6 hallucinations, severe hallucinations. For months I was
7 on it. And it's quite well recorded that it does that.
8 I spoke with another attorney before I was able to
9 get -- anyways, before Dolan came on, another
10 attorney --
11 MS. LEVY: Okay. He doesn't want to know
12 anything about our conversations, okay? Let's just
13 stick to answering the questions.
14 THE WITNESS: He asked me the question of what
15 I remember about the medication, was that right, Mike,
16 and my care? I remember that it was months before I was
17 able to get in with like the standard, so I just kept on
18 talking to One Medical, but a lot of those things, I
19 don't know if those stories were right. Like I said, I
20 was having hallucinations from the medication that San
21 Francisco General prescribed me.
22 BY MR. CHAMBERS:
23 Q Let me see if I can help out. Looks like you
24 had some acupuncture first with a facility called Blue
25 Buddha. Do you recall your care at that facility?

1 A I recall one of the sessions. I believe I had
2 gone to several of them, but I recall one session. It
3 was extremely painful. It helped a lot. She was able
4 to -- yeah, so yeah, Blue Buddha. I'm volunteering more
5 information.
6 Q That's okay. When you went in to Blue Buddha
7 for an acupuncture session, how long --
8 A Hold on a second. Ah, ah, ah. I can't sit
9 like that for very long. Sorry.
10 Q Let me know when you're ready to go.
11 MS. LEVY: Why don't we just take a five-minute
12 break if that's okay with you.
13 MR. CHAMBERS: Yeah, that's fine. Let's come
14 back at 10:50.
15 MS. LEVY: You can go ahead and --
16 MR. CHAMBERS: Yeah. We'll come back at 10:50.
17 (Short break.)
18 BY MR. CHAMBERS:
19 Q When we took the break, we were talking about
20 your care at Blue Buddha, and do you recall when you
21 went in for an appointment how long the visits would
22 last?
23 A They were like an hour, sometimes two hours.
24 It was very in depth. She did a lot of alignment and
25 asked me -- felt where my vertebrae -- it was far more

1 involved than like I ever got at a doctor's office. She
2 was feeling each vertebrae and everything all the way
3 down the line, so -- and remember, I had to take care of
4 my own healthcare at the time because I didn't have
5 insurance yet, standard. I had essentially One Medical
6 which isn't what you would call a standard PPO, right?
7 So everything was out of pocket.
8 Q And how long did you end up treating at Blue
9 Buddha?
10 A It was over a period of about two months on a
11 couple of different sessions.
12 Q And when you finished up with Blue Buddha, what
13 pain or symptoms were you having at that point?
14 A Her and I discussed extensively about the
15 spinal pain and the neck pain. I don't recall the
16 immediate -- like literal I guess you'd say like
17 shooting pain like an ice pick through the center of my
18 cranium, that didn't stop for months. So it was long
19 after even the care. I mean, there was a little bit of
20 relief. Like I said, I was having hallucinations pretty
21 much daily from the gabapentin, so the details of -- I
22 know I felt relief every time after I visited her office
23 to a degree, but it didn't cover everything. Is that
24 clear, Mike?
25 Q Sure. So then it looks like you had some

1 additional acupuncture care with an in-home care
2 provider named Leif Lemon; is that correct?
3 A Yeah. Leif.
4 MR. CHAMBERS: For the court reporter, Leif is
5 L-e-i-f.
6 BY MR. CHAMBERS:
7 Q And how did you find that provider?
8 A He's in the family directly. He had practiced
9 in Alaska and I think also somewhere else. He wasn't
10 actively -- and that's why I sought him out, because he
11 didn't have a regular practice. It was very expensive
12 to go see Blue Buddha, and so he and Blue Buddha had a
13 talk about my ongoing care, Leif and the woman at Blue
14 Buddha, so she kind of handed me off to him. You
15 understand what I mean?
16 Q Right. So you found Leif Lemon through your --
17 A He's in my family. He's part of my family.
18 Q Is he a family member?
19 A He's married to a sister. Does that make
20 sense?
21 Q Sure.
22 A He's not my -- yeah.
23 Q So he's your brother-in-law?
24 A Yes, he's my brother-in-law, correct.
25 Q So he would come over to your house and provide

1 acupuncture treatment for you?
2 A Yeah. After the collision, you know, he came
3 all the way here from Washington and stayed and helped
4 me around not only here in my lab but also provide care.
5 Between him and my wife, I made it through those first
6 few weeks without -- had it not been for them, I don't
7 know where I would be right now today.
8 Q Was he staying with you, then, at the time?
9 A Yeah. He came all the way from Washington, you
10 know, on his own dime and provided care. He brought the
11 groceries in, he cooked for me, helped me bathe, you
12 know. It's like a family member but he was also
13 providing treatments daily and he helped me -- I can
14 honestly tell you, Mike, it was for me to get whatever
15 was going on with the nerve that was pinched to my
16 spine, he helped to relax, and maybe those nerves
17 finally died or something like that, but it was daily
18 24-hours-a-day pain going through my -- you know, and it
19 was -- it was so sharp it was hitting inside of my
20 frontal lobe, right? I was seeing black spots. Coupled
21 with hallucinations, it was a bad scene, dude. Yeah,
22 man.
23 Q So his care, he would do acupuncture treatment
24 for you, then?
25 A He did acupuncture and then not chiropractic

1 but -- I mean, the muscles had all been -- everything
2 there, it was crazy there was no bruises. I had a hard
3 time sitting up and getting up to stand up. I mean, it
4 was awful. So he provided not only the muscular
5 massaging and alignment as well as the acupuncture and
6 preparing my diet, and he monitored my medication.
7 Q So would he provide meals for you as well?
8 A Yeah. He cooked food and everything, yeah. He
9 went and got groceries. He actually -- I had been
10 concerned that I had been broken into, somebody tried to
11 break into my laboratory while I was here, and he
12 installed cameras and other things for me so I could be
13 safe. He put in a proper mailbox at the top of my
14 stairs so I didn't have to keep on going downstairs to
15 get deliveries. I couldn't go anywhere. I don't have a
16 car so, you know, I was essentially confined to this
17 chair for almost six months.
18 Q How long did he end up staying with you?
19 A Like I said, you know, hallucinations for six
20 months, I don't know. At some point he did go home, I
21 know that. It was long after. And he was very fair
22 with the accounting of how much time he spent, overly
23 generous, let me tell you. Overly generous. He was
24 pretty much on call for 24 hours a day for months.
25 Q So when he finished his care, how were you

1 feeling at that point?
2 A That's when my wife's insurance -- I was able
3 to get on my wife's insurance. Like I said, those
4 months during the hallucination gabapentin phase, they
5 were rough. So I haven't -- I still haven't -- you
6 asked me how long after did I start feeling better?
7 MS. LEVY: No, no.
8 BY MR. CHAMBERS:
9 Q I was asking when Mr. Lemon finally finished
10 his care and left, what were you feeling at that point.
11 A Can you be clear on what I was feeling as far
12 as pain level or --
13 Q I just want to get an idea of what parts of
14 your body were still in pain, if any, and what symptoms
15 you still had when Mr. Lemon left.
16 A Well, he really started after that -- and
17 really provided help after that fall I took, because I
18 was trying to do things and my equilibrium -- the pain
19 level was so great, that fall because of the weakened
20 shoulder and my -- Mike, I used to be able to surf and
21 everything and I lost all of that in my life, okay, so
22 it's been hard. I've been -- I'm a father of four and
23 it's tough, man, so I'm sorry. We're just talking about
24 stuff and a lot of that stuff just blanked out. I'm
25 sorry.

1 Q Let me --
2 A I don't recall for months. I don't know if he
3 was here or if he was gone. I just know that I was in
4 pain. I still am today.
5 Q Let me ask you, when did you take the fall?
6 A I don't remember.
7 THE WITNESS: Wife, what day was it?
8 MR. CHAMBERS: You can't help --
9 THE WITNESS: I don't remember the date. It
10 was in the middle of the hallucinations, okay?
11 BY MR. CHAMBERS:
12 Q All right.
13 A Sorry. I just -- I'm trying to put this behind
14 me.
15 Q You said at some point you got on your wife's
16 medical insurance; is that correct?
17 A My wife married me so I could get health
18 insurance.
19 Q Is that when you went to Kaiser?
20 A Yeah.
21 Q And what care did you have at Kaiser?
22 A They sent me to a person that looks at your
23 bones and stuff like that and they just said, "Do some
24 exercises with your arm, exercise the muscle," and I'm
25 like "That's going to do nothing for the pain in my

1 spine and bones." I don't feel that Kaiser really ever
2 did anything for me. I'm sorry. They didn't -- I can't
3 take -- it's just I've had to take care of my own
4 health, my wife and everyone that stood here while I've
5 suffered for months and months, Mike, so --
6 Q So --
7 A I don't feel that I got from Kaiser anything of
8 value. They tried to give me like, "We're going to send
9 you to a physical therapist to work out your muscles,"
10 and I'm like, "All right. That's not taking the spinal
11 pain away." Three of my ribs broke an inch from my
12 spine, okay, Mike, and the nerve bundles that traverse
13 up and down the human spine can be very delicate. One
14 or two of them can get tweaked in the wrong way and
15 you're in severe, debilitating -- like I was in
16 screaming pain if I moved the wrong way.
17 Every time I laid down, I was afraid to lay
18 down for months. I was in the back of my lab and Leif
19 was here, my wife was here, and I tried to get up and I
20 literally started screaming it was that bad, okay?
21 Q Were there any other medical providers or
22 facilities that you treated with for your injuries?
23 A Like I said, we went through months of these
24 like referral after referral at Kaiser, so we just went
25 to Kaiser, and then I had private in-home kind of like

1 people who would help. Mike, it's in your bones. You
2 can't massage your bones.
3 MS. LEVY: Dylan, he asked if you had any
4 additional medical care providers.
5 THE WITNESS: Yeah. I've had people that were
6 private referral, but other than Kaiser, no.
7 MS. LEVY: And you can't keep asking Victoria.
8 THE WITNESS: I'm sorry. Like I said, there
9 were months that -- yeah, Kaiser is like the only
10 medical provider that I have seen other than private
11 referral, you know, people that are within my network of
12 Ph.D.s and doctors that I work with on a normal basis.
13 So no, there's no organization, formal PPO that I have
14 seen. I would have put it on the paperwork, Mike, if
15 there were, because I would be paying the bills for it
16 right now like I have been.
17 BY MR. CHAMBERS:
18 Q When was the last time you went to Kaiser for
19 care?
20 A Last time I went there I got an MRI. I believe
21 it was earlier this year. Yeah. It was months ago.
22 And I sent the scans over to Dolan already.
23 Q And do you have any future appointments
24 scheduled at this time at Kaiser for care?
25 A No. I'm trying to seek a second opinion on my

1 spinal damage.
2 Q And the MRI, what part of your body did they do
3 the MRI of?
4 A The spine.
5 Q Was it the cervical spine, lumbar?
6 A They did it all the way from my waist up to my
7 neck.
8 Q So cervical, thoracic, and lumbar?
9 A Yeah.
10 Q Has anyone indicated to you that you need
11 surgery for your injuries?
12 A I have not been prescribed surgery, no.
13 Q And since the accident, have you experienced
14 any numbness and tingling?
15 A Daily right now I am, Mike, yeah. It hasn't
16 stopped since I was struck by the truck.
17 Q In what part of your body have you been
18 experiencing numbness and tingling?
19 A It's severe on the right side of my body, which
20 makes sense. The nerve bundles up and down your spine
21 are like a woven thread. So the right side of my body,
22 wrist, elbow, shoulder, ankle, hip, and of course the
23 shoulder obviously, the clavicle area and my right wrist
24 and hand.
25 MS. LEVY: And I just want to clarify, you were

1 asked about numbness and tingling.
2 THE WITNESS: Yeah, that's where I'm feeling
3 it, those locations, numbness and tingling, or total
4 loss of feeling completely sometimes.
5 BY MR. CHAMBERS:
6 Q And you sort of mentioned it before, but can
7 you just describe to me how your injuries affected your
8 activities?
9 A Mike, I used to do tai chi, dance, surf, climb
10 rocks. I can't do any of that anymore. My entire life
11 has -- I was very active. My friends who were all DJs
12 were so broken-hearted because I used to go out to an
13 event with them and they'd see me on the dance floor.
14 So it's severely impacted my life, let's just say that.
15 Q Any other specific activities that you can
16 recall that were affected?
17 A Sleeping. I couldn't lay on my back. But
18 today, if you say today, things that were affected, my
19 entire life was affected for pretty much that first --
20 for almost ten months, and it still is today, so you're
21 asking me "were," "is." "Is" versus -- still my life is
22 affected by it, okay? Does that clarify?
23 Q Sure. That helps me out. Thank you.
24 Before this accident had you ever sustained an
25 injury before to your head?

1 A No, no. None. I've never been hospitalized
2 for anything of this sort ever in my life. No car
3 accidents, nothing like that.
4 Q Before this accident, any prior complaints of
5 headaches?
6 A No, no. None whatsoever.
7 Q I'm just getting an idea of your medical
8 history, that's all.
9 Before this accident, any prior injuries to
10 your neck?
11 A No.
12 Q And before this accident, any prior complaints
13 of neck pain?
14 A No. I've -- no, none. I've had -- like I
15 said, I was a surfer, I did tai chi and martial arts and
16 danced. I was very active.
17 Q Before this accident, any prior injuries to
18 your back?
19 A No, none.
20 Q And before this accident, any prior complaints
21 of back pain?
22 A No, none.
23 Q Before this accident, any prior injuries to
24 your shoulders?
25 A No.

1 Q And before this accident, any prior complaints
2 of shoulder pain?
3 A No, none.
4 Q Before this accident, any prior injuries to
5 your chest?
6 A We're going to go through all of them? All
7 right, yeah. No, there's no -- there was no injuries to
8 my chest. Like I said, I have never had any accidents
9 or any pains.
10 Q Before this accident, any prior complaints of
11 chest pain?
12 A No, no chest pain prior.
13 Q Before this accident, any prior injuries to
14 your arms?
15 A I had mentioned I had been -- I had a
16 deposition when I was a child. The only accident I had
17 was I had a dog bite on my right arm. That's the only
18 other time I've ever done a deposition like this, and I
19 was eight or nine years old.
20 Q And other than that, any other prior complaints
21 of arm pain?
22 A Never.
23 Q Before this accident, any prior injuries to
24 your elbows?
25 A No.

1 Q And before this accident, any prior complaints
2 of elbow pain?
3 A No.
4 Q Any other complaints of elbow numbness and
5 tingling?
6 A No.
7 Q Before this accident, any prior injuries to
8 your wrists?
9 A No. We are going to go through them all?
10 Okay.
11 Q Before this accident, any prior complaints of
12 numbness and tingling in your wrists?
13 A No. I'm sorry, Mike. I didn't know you were
14 going to be so methodical. I'm like, "Is he really
15 going to go through every single joint all the way
16 through my body?"
17 Q I'm just going off what you've indicated in
18 your testimony, so I'm almost done.
19 A You repeated back to me the places where I said
20 I had tingling. Okay. Got it.
21 Q Before this accident, any prior injuries to
22 your ankles?
23 A No.
24 Q And before this accident, any prior complaints
25 of ankle numbness and tingling?

1 A No.
2 Q Almost done. Before this accident, any prior
3 injuries to your hips?
4 A No.
5 Q And before this accident, any prior complaints
6 of numbness and tingling in your hip?
7 A No.
8 Q And I think you've already described one, but
9 since the accident in this case have you been involved
10 in any new accidents or injuries? I know you mentioned
11 the fall. Anything else other than that fall?
12 A No. I'm afraid of even leaving -- I'm
13 literally -- I don't even leave my house barely. I'm
14 just starting to venture out. So no, I've not been in
15 any other accidents, not in my home and not outside,
16 ever.
17 Q And the fall that you experienced, was that in
18 2021?
19 A That was -- yeah. It was last year. Yes, it
20 was. It was last year.
21 Q And that was at your home?
22 A Yes. I'm realizing it's August already. Yeah.
23 Sorry.
24 Q That's all right. At this point what
25 medication are you still taking?

1 A Whatever I can source right now, you know.
2 It's an ongoing thing. It's very hard to service that.
3 So I've been trying and looking into a number of
4 different things, and so being on something for a couple
5 days doesn't constitute for me, you understand what I'm
6 saying, as taking it. So nothing right now that is
7 consistent. And there's nothing that's prescribed by
8 the doctor, if that's a more clear answer. I have
9 nothing currently prescribed by any doctor right now at
10 all. Is that an appropriate answer?
11 Q Yes, that's fine. So you've sort of alluded to
12 it before, but can you just describe to me what pain or
13 symptoms you're still having that you blame on the
14 accident?
15 A I have a persistent rigid, I don't know what it
16 is, around the center of my spine, and when it starts to
17 tighten up over maybe 24 to 46 hours, I start to lose
18 numbness through my extremities, my arms, and so that
19 builds up over days and days. And then at times -- it
20 hasn't been as frequently as it was, you know, prior to
21 I'd say March of this year. For a year there, if I
22 moved the wrong way, I literally -- my eyes would roll
23 in the back of my head. I felt like I was being stabbed
24 through my skull.
25 So those ones have been farther and fewer

1 between. But the consistent loss of sensation and
2 feeling and the pins and needles -- the pins and needles
3 once in a while happen in my ankle, but those don't
4 happen in my wrist anymore. They were really, really
5 bad. And then I notice that I'm having muscle spasms.
6 And it's really weird. It's on the left side. But like
7 I said, the wiring in your spine is like a braided rope,
8 so you could hit the spine on the right side and it will
9 affect the musculature on the left side.
10 But it starts just above my shoulder blade and
11 goes down to about above my bellybutton along my back.
12 So that whole area, it can be very tender one day, and
13 the next day it can be swollen and I have a hard time
14 moving, and then the next day I could be having shooting
15 pain right up through that whole area. So it's a
16 variation. That's the part of being human, right? Our
17 nervous system is a complex web of literally
18 interconnected neurons of the exact same cell that
19 travels throughout your skeletal system.
20 Q Any pain or symptoms you're currently having
21 that you blame on the accident?
22 A As you know, there's been -- we didn't do an
23 in-depth MRI on the cranium, so we don't know if there
24 was actually -- I know they did a CAT to just check that
25 when I was in the hospital at Zuckerberg, but swelling

1 and other things are not directly perceptible in that
2 sense. They could, but they didn't do a super close
3 thing.
4 So your question about what else is affecting
5 me, I've been having -- I believe what I'm feeling is
6 neurological consistent pain and discomfort in the
7 center of my spine, and it's still persisting to today.
8 There's been no change.
9 Q So when you say "cranium," you are talking
10 about your head; is that correct?
11 A You know, from my neck -- yeah. The bundle of
12 nerves, I mean, the whole thing was smacked with an
13 8,000-pound truck, so it feels horrible.
14 Q Is it headaches that you're having? Or what
15 are you having with your head?
16 A It's not headaches per se. The neck, the
17 spine, it's all extremely delicate and sore, you know.
18 Q At the time of the accident were you wearing a
19 helmet?
20 A I don't recall. I could have been, but there
21 was a lot of people at the scene. If I were wearing
22 one, it could have been stolen. I don't know. I don't
23 recall.
24 Q As far as exercise, are you doing anything
25 currently as a mode of exercise?

1 A I go walk with my granddaughter, my new
2 granddaughter recently. But I've been so afraid of
3 doing any exercise that was going to disturb and erupt
4 my spine again that I've been avoiding it. And the
5 shoulder doesn't make it any easier. It's painful for
6 me to lift anything more than 15 -- I definitely can't
7 lift 20 to 25 pounds. I have a kettlebell here that I
8 used to work out with, and I can't pick it up. I mean,
9 it's hard enough for me to pick up a box from Amazon
10 from my right side. The clavicle is completely
11 dislocated, so --
12 Q So sounds like currently your exercise is just
13 going on walks with your granddaughter?
14 A Yeah. If I take enough medications or a blend
15 of it, certain things will work, I'll be able to walk
16 and move a little bit better but, you know, I can't
17 medicate myself to those levels all the time. Does that
18 make sense?
19 Q Sure. And I think you mentioned earlier as far
20 as your business, you lost a contract because of your
21 injuries. Is that correct? I'll state it again.
22 I think you mentioned earlier that because of
23 your injuries you lost a contract that you were working
24 on. Is that correct?
25 A Yes, sir. Yes, that's correct. I'm sorry.

1 I'll try to keep the answers shorter. I don't want to
2 keep everybody here all day. Oh, hold on. Oh, oh. Ah.
3 Okay. All right. Go ahead.
4 Q Let me just pull up the information here.
5 A Mike, I've always had --
6 MS. LEVY: There's no question pending, Dylan.
7 I was going to ask you to just answer the question.
8 THE WITNESS: Sorry. I'm apologizing about my
9 physical situation. I'm sorry.
10 MS. LEVY: You don't need to apologize. That's
11 all right.
12 BY MR. CHAMBERS:
13 Q So at the time of the accident you were working
14 on a contract. What company were you working on that
15 contract for?
16 A It's a private equity management company
17 originally out of New York. It's actually bicoastal.
18 It's with The Raffin Group, a group of investors that
19 work in high net worth and venture capital. I had
20 already been engaged in the project prior to the
21 collision from I believe October the prior year. We
22 were months and months into it, a very deep, very
23 complex system.
24 Q So what were you developing as part of that
25 contract?

1 A I was building a context-aware artificial
2 intelligence that would manage and handle the operation
3 of financial management systems as well as what you
4 would call a robo-advisor. It would predict and analyze
5 an individual's need for distribution of their
6 individual net worth and distribute that across a number
7 of recommendations that I would build into it.
8 So we were deep in this construction of this
9 artificial intelligence. It's what I do professionally.
10 Q And I think you said that project started in
11 October of --
12 A October the prior year, of '20.
13 Q 2020?
14 A Yeah. Like I said, we were I believe six
15 months into it. I had a whole team of engineers that
16 worked here with me.
17 Q And the contract, was that a written deal or
18 contract that you had with The Raffin Group?
19 A Yes, yeah. I believe I provided that to the --
20 THE WITNESS: What was the doctor's name, Kim?
21 MS. LEVY: That's not -- we're --
22 THE WITNESS: Oh, okay. Yes, I was in a
23 contract to provide services, and I was the lead
24 architect, so I was designing the AI, I was.
25 BY MR. CHAMBERS:

1 Q What were they paying you for that contract?
2 A I looked at the records the other day. We were
3 approximately getting about $30,000 a month on average.
4 That's what the financial records show that was
5 transferred to our bank account.
6 Q And The Raffin Group, is that R-a-f-f-i-n?
7 A R-a-f-f-i-n, correct.
8 Q So what happened with the contract?
9 A They -- for ethical purposes, Dr. Raffin and
10 his son had to cancel it because they knew that I wasn't
11 capable of fulfilling the contractual obligation to
12 design the AI.
13 Q How did they know that?
14 A I was having hallucinations and I was in pain,
15 and it was pretty obvious to everyone around me that I
16 couldn't perform my job.
17 Q The cancellation of that, did they do that in
18 writing as well?
19 A Yes. Everything was canceled, yeah. It's kind
20 of like when you do these technical things, you get
21 paid, and if they said, "Hey, we want to stop," they can
22 stop the payments. That's what's built into these types
23 of contracts. It protects the buyer so that way they
24 don't get obligated to a large contract payment if the
25 company doesn't deliver what they're supposed to be

1 doing.
2 Q Would it be similar to a month-to-month
3 contract?
4 A Yes. You would consider it month-to-month
5 because there was a month-to-month component built into
6 the contract which required that I maintained developing
7 artificial intelligence solutions for it, and the number
8 was a development price, not the actual production
9 price. So during development you have a lower price,
10 and when you go into production you have a longer-term
11 obligation to provide a level of service for that
12 contract, so it includes servers. As the product
13 expands, the price goes up. Does that make sense?
14 Q So if you had completed that contract, was
15 there a further commitment that was anticipated?
16 A Yes, sir.
17 Q And is that the -- I'm looking at your
18 responses. Was that the $2 million to $3 million
19 investment if you were able to deliver on that contract?
20 A Yeah. Effectively it would have constituted
21 approximately about $2 million to $3 million in the
22 first year for the service level, for the engineering,
23 all of those things, and that also included -- a good
24 portion of that was the profit and, you know, work that
25 related to me as the founder and the principal

1 shareholder of the company.
2 Q Did you have to submit benchmarks or progress
3 reports each month?
4 A Yes. I had those. Yes, I did.
5 Q And I'm assuming those are all in writing as
6 well?
7 A Yes. They're all preserved on my corporate
8 e-mail, managed and hosted by Google.
9 Q And at that time were you working on any other
10 contracts or just this one contract?
11 A I was also working on my principal software for
12 my company. So the client, The Raffin Group, was what I
13 would call a vertical implementation. My primary
14 software is actually for ecommerce. So I have two
15 product paths. Essentially it's like Oracle sells
16 software for medical and they also sell software for
17 automotive. So I was working on my primary one which as
18 ecommerce, and then I was doing the fintech one on the
19 side for revenue. Does that clarify?
20 Q Fintech? How do you spell that?
21 A F-i-n-t-e-c-h. It's the industry term for
22 anybody that does financial-based software and things
23 like that.
24 Q Any other loss of income that you incurred as a
25 result of your injuries?

1 A Yeah, yeah. My ability to -- I mean, you would
2 ask -- let me clarify. Can you clarify that? Loss of
3 income as far as contracts I have written?
4 Q Anything else that you lost that you had
5 pending at the time that you lost because of your
6 injuries.
7 A Well, I was in the active role of raising
8 capital from angel investors, so I had to cease that
9 practice. Does that make sense? Well, let's say this.
10 I got investments on the average of $10,000, $20,000,
11 $30,000 into the company on the average of just a few
12 months apart to maintain the operation of the company.
13 After the accident, I could not go out and
14 raise money from investors any longer, so I was unable
15 to -- you understand what I'm saying there?
16 Q Uh-huh.
17 A So that's how I was financing the company, by
18 raising money through equity debt, and because I
19 couldn't raise money, essentially it nosedived
20 everything and I had to come out of pocket to even just
21 pay the server fees here for the company because we had
22 no more revenue.
23 So yes. But does it directly equate to --
24 yeah, I would say if you were to take the angel
25 investments and amortize that over the time of the

1 company, I lost all the money that I would have
2 collected from pitching and acquiring angel investors,
3 right? It's kind of like a pipeline.
4 Q Let me ask this, though. Were there any angel
5 investors that had committed to you that withdrew their
6 commitment after the accident?
7 A I was in conversation with two that -- they
8 just quit talking, so -- and we were very close on a
9 couple of them, yeah.
10 Q You mentioned the hallucinations that made it
11 difficult for you to complete the contract. Anything
12 else about your injuries that made it difficult for you
13 to complete the contract?
14 A I couldn't type, you know. I'd be constantly
15 in pain. So it's not like I could sit there at the
16 keyboard for hours and knock out an algorithm. I had to
17 constantly shift to get my spine into a proper place.
18 The swelling was going up and down my body. The
19 swelling was -- they oftentimes don't talk about that,
20 but the swelling can be just as bad, you know, as the
21 pain. You feel bloated and -- yeah. Yeah.
22 Q Is your business still operational? Are you
23 still working on your business?
24 A I had to leverage -- my wife and I had to
25 leverage everything we owned in our credit cards and

1 everything to keep the business going. I get subsidized
2 from my other business partner, but he can only come out
3 of pocket so much for overhead and bills. So I kept it
4 alive. The company is still here, correct. We're
5 behind on a lot of payments that would have come from
6 The Raffin Group, the ongoing revenue and profits that
7 we would make from that. We lost all of that and it set
8 the company back, but we're still hanging in there.
9 Q Are you currently working on any contracts, or
10 is it just working on what you talked about before,
11 your --
12 A I'm working on my original ecommerce vertical
13 which essentially is completely self-funded other than
14 occasional angels. That's all I've been working on
15 for -- since I started -- since the hallucinations
16 have -- you know, I've been working on it since maybe
17 December and it's been all coming out of pocket.
18 Q How far are you along on that process?
19 A Now today?
20 Q Yes.
21 A It's come quite a long ways. It's actually
22 ready to show customers. As a matter of fact, my new
23 chief revenue officer that has joined the company to
24 help me out, he just demoed it yesterday to two clients
25 and looks like we're going to have LLIs set up in place

1 very soon. And those type of contracts, they could
2 start at about $3 million and go upwards of $15 million
3 a year to build artificial intelligence for them.
4 Q You said LLI. What's --
5 A Letter of intent, which then establishes my
6 entity and that entity to go forward and make a
7 statement of work, and then the statement of work turns
8 into a formulation for the contract and the
9 deliverables. Oh, ah.
10 Q Just a few more questions and I'll let you go.
11 Other than this lawsuit for personal injuries
12 and when you had the dog bite, any other prior lawsuits
13 for personal injury?
14 A Never, never.
15 Q Any prior claims for Workers' Compensation
16 benefits?
17 A Never. I sit at a keyboard. It's not a really
18 dangerous job where I'm going to get hurt. Maybe a
19 paper cut or maybe some wrist stuff, carpal tunnel. But
20 that's one of the things after I was struck. Literally
21 I must have gone through about $2,000 in keyboards and
22 setups to make my space ergonomical and I still haven't
23 done it. You should see the elaborate system. It's
24 like a hive. Matter of fact, there's a really nice
25 chair I'd like to order but I can't afford it and

1 whatever. I have a grandchild, I have bills and, you
2 know --
3 Q Any prior claims for disability?
4 A Never, no.
5 Q In the 24 hours before this accident did you
6 consume any alcohol?
7 A No.
8 Q And in the 24 hours before this accident, did
9 you consume any medication or drugs?
10 A No.
11 Q And since the accident in this case, have you
12 taken any vacations or trips?
13 A Never.
14 Q And did you have to cancel any vacations or
15 trips due to your injuries?
16 A Yeah. Honeymoon.
17 Q Did you have something already booked and
18 scheduled?
19 A I wouldn't even try. I'm not mobile enough at
20 the time, and even today I'm not in a financial place to
21 be able to afford that. I have to work day in and day
22 out in pain because I can't afford engineers so I have
23 to do all the work to keep my company alive.
24 Q Just so I'm clear, were there any vacations
25 that you had planned or booked that you had to cancel?

1 A That I had to cancel?
2 Q Correct.
3 A I was going to go see my family, yeah. I
4 usually try and go back and see my family every year.
5 So yes, those regular family visits had to be canceled,
6 correct.
7 Q Where would you go to visit your family?
8 A Washington and Oregon, southwest Washington and
9 Seattle and Oregon. Sorry. It's just --
10 Q That's okay. I'm almost done.
11 A Sometimes I'm terrified to leave the building.
12 It's been like that --
13 Q I'm just checking my notes.
14 A Sometimes I have to --
15 MS. LEVY: Dylan, if there's no question, I'm
16 going to ask that you don't answer questions that
17 aren't --
18 THE WITNESS: He was just asking me about going
19 on trips, and I was just saying it's hard enough for me
20 to just leave my building alone. But planning a
21 vacation now at this situation that I'm at, I wouldn't
22 do it. And yes, I did have to miss my regular visits to
23 see my family up in Washington and Oregon.
24 BY MR. CHAMBERS:
25 Q I don't have any other questions at this point.

1 THE REPORTER: Ms. Levy, do you have any
2 questions?
3 MS. LEVY: No, I don't.
4 THE REPORTER: And would you like a copy of the
5 transcript?
6 MS. LEVY: Please. Thank you.
7 (Deposition concluded at 11:35 a.m.)
8 --- oOo ---
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25

REPORTER'S CERTIFICATION

I, Barbara Sunseri, Certified Shorthand Reporter, in and for the State of California, do hereby certify:

That the foregoing witness was by me duly remotely sworn; that the deposition was then taken before me at the time and place herein set forth; that the testimony and proceedings were reported stenographically by me and later transcribed into typewriting under my direction; that the foregoing is a true record of the testimony and proceedings taken at that time.

IN WITNESS WHEREON, I have subscribed my name, this 19th day of August, 2022.

Barbara Sunseri

Barbara Sunseri, CSR No. 6989

1 DEPOSITION ERRATA SHEET
2
3 Our Assignment No. J8443145
4 Case Caption: Rosario vs Abdelhalim
5
6 DECLARATION UNDER PENALTY OF PERJURY
7 I declare under penalty of perjury that I have
8 read the entire transcript of my Deposition in the
9 captioned matter or the same has been read to me, and
10 the same is true and accurate, save and except for
11 changes and/or corrections, if any, as indicated by me
12 on the DEPOSITION ERRATA SHEET hereof, with the
13 understanding that I offer these changes as if still
14 under oath.
15
16 Signed on the ____ day of _____, 2022.
17
18 _____
19 FRANCISCUS DYLAN ROSARIO
20
21
22
23
24
25